VERMONT HEALTH CONNECT

Contact ID: «HOHCONTACTID»
Mastercase: «MC»
Service Request: «SRs»

NoticeDate

Notice ID: EE312-MM
Questions? Call Toll Free 1-855-899-9600
Deaf or hard of hearing? Call 711

PRINTDOC

HOHFIRSTNAME HOHLASTNAME
MAILING_ADDRESS MAILING_ADDRESS_2
CITY STATE ZIP

Your Medicaid is ending on EndDate because of your immigration status.

Dear HOHFIRSTNAME HOHLASTNAME,

Your **Medicaid is ending** because our records show that you do not meet the new immigration rules. **And** you didn't send new proof that you do meet the rules. The new Medicaid immigration rules are described below. (The Medicaid Act, 42 U.S.C § 1396(v)(5), Pub. L. No. 119-21, § 71109 (2025))

These members of your household will **lose** Medicaid on **EndDate:**

NAME1	**NAME2**	**NAME3**
NAME4	**NAME5**	**NAME6**
NAME7	**NAME8**	**NAME9**
NAME10		

When we say "you" in this letter, we mean the people listed above.

What are the new Medicaid immigration rules? Starting **October 1st**, only these people can get Medicaid:

- U.S. citizens and nationals
- People who are in the United States legally and are under 21
- People who are in the United States legally and are pregnant
- Lawful Permanent Residents (green card holders) who:
  - Do **not** have to meet the 5-year waiting period **OR**
  - Have **already** met the 5-year waiting period

  Some Lawful Permanent Residents must wait 5 years before getting Medicaid.
- Citizens of Micronesia, Marshall Islands, and Palau who live in the United States under COFA. COFA means the Compacts of Free Association.
- People who are Cuban-Haitian Entrants

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Do you want to know what immigration status we have on file for you? Call us at **1-855-899-9600.**

Why are the Medicaid immigration rules changing? Federal Medicaid law is changing**.** This is called a mass change. It is a change that affects some or all people on Medicaid.

Do you disagree with our decision? You have the right to appeal. (HBEE Rule 80.03(c)) To **appeal** means to ask for a decision to be looked at again. Tell us in your appeal if you think we are wrong about your case, such as:

- You have a green card and you think you already met **OR** do not have to meet the 5-year waiting period.
- You are a Cuban/Haitian Entrant **OR** are living in the United States under COFA.
- You are a U.S. citizen **OR** U.S. national.
- You are pregnant **OR** under 21 years old.
- You don't think this change in law was correctly applied to you.

Want to know when you may have a fair hearing? Want to know if you can keep services during the appeal? See the last page of this letter.

What will happen next?

- Are you a refugee or asylee who entered the United States within the last 4 months? If so, we will check to see if you can get **Refugee Medical Assistance**. It covers the same services as Medicaid. You do not need to apply for it. We will send you a letter telling you if you can get it.

- You will get **Emergency Medical coverage** unless you qualify for Refugee Medical Assistance. Emergency Medical pays for certain medical emergencies and labor and delivery. You do not need to apply for it. You will get another letter saying when your Emergency Medical coverage starts.

- A **Qualified Health Plan** is a health insurance plan you can buy. You may get one if you are in the United States legally. Some people get help paying for it. You will get another letter soon. It will say if you can get a Qualified Health Plan and help to pay for it.

Do you have a job? Does it offer health insurance? Losing Medicaid may give you a **special enrollment period** to get insurance through a job. A special enrollment period is a time outside the yearly open enrollment period when you can sign up for insurance. Ask your employer what the deadline is to sign up. Show them this letter.

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IMPORTANT! Some changes may help you get Medicaid in the future.
You can apply at any time. Call us at **1-855-899-9600** if:

- Your immigration status changes **OR**
- You become a U.S. citizen **OR**
- You become pregnant.

Have questions or need help?

All of these places have free interpreters/translators.

- Call us for free at **1-855-899-9600**. We are open Monday to Friday from 8 a.m. to 4:30 p.m. (except holidays).
- **OR** go to dvha.vermont.gov/information-for-non-citizens on the internet. You can read our Medicaid website in other languages. Look for the globe picture at the top right corner of the screen. Click on it. Then choose your language.
- **OR** get free in-person help from an Assister. Assisters are people trained to help you understand health care. To find one near you, go to info.healthconnect.vermont.gov/find-local-help/find on the internet. **OR** call us at **1-855-899-9600**.
- **Do you have questions about Medicaid, immigration, or need other legal help?** Call Legal Aid at **1-800-889-2047**. Their help is **FREE**.
- You can also get **FREE** help by calling the Office of the Health Care Advocate. Their number is **1-800-917-7787**. **OR** go to www.vtlawhelp.orgon the internet.

Thank you,
Vermont Health Connect Customer Service

Rights of People with Disabilities

Is it hard for you to do the things we ask you to do? We can make changes to help you. Changes are called "reasonable accommodations" under the ADA (Americans with Disabilities Act).

Here are some of the changes we can make:

- Someone can write down your answers if you can't.
- We can give you more time.
- We can help you get papers you need to give us.
- You can have a support person with you when you talk to us.
- We can send you papers in large print.

Do you need **any** changes to help you? Tell us by calling **1-855-899-9600** for free.

Your Right to Appeal

Do you think a decision is wrong? You have the right to appeal.
To appeal means to ask for a decision to be looked at again. **When you appeal, we look at whether the decision was correct.** At a fair hearing, you can explain why you think the decision is wrong. Someone who did not make the decision hears the case.

Are you only appealing a change in federal or state law that affects some or all enrollees? This type of change is called a "mass change." There is no right to a fair hearing to question the change in law itself. But you may have a fair hearing if:

- the facts are not right **OR**
- the change was not correctly applied in your case.

There are 4 ways to file an appeal:

1. Call Customer Support for free: **1-855-899-9600.**
2. Send a letter to: Human Services Board,
   6 Baldwin Street, Suite 305, Montpelier, VT 05633-4302
3. E-mail: **AHS. DVHAHealthCareAppealsTeam@vermont.gov.** Write Appeal as the subject.
4. Sign in to your VHC account: **healthconnect.vermont.gov.** Click **Appeal** button.

Is there a deadline to appeal?
Yes. You have **90 days** to appeal after the date of the decision. After you appeal, the Human Services Board will mail information to you. They have 90 days to decide your appeal.

Who can speak for me in my appeal?
Speak for yourself **or** have a friend, relative or someone else speak for you. **OR** have a lawyer speak for you.

Where can I get help with my appeal?
Call Legal Aid's Office of the Health Care Advocate at **800-917-7787.** They give free legal advice. You may get a free lawyer.

What if I need health care right away? Will waiting for an appeal harm you? You can ask for a fast (expedited) appeal. Fast appeals are usually decided in 7 working days. It may take longer if you are on long-term care Medicaid or getting Medicaid because you are aged, blind, or disabled.

Can my coverage stay the same while I appeal?

Yes, but only in some cases. We will send you a notice at least 11 days before a change takes place. You must appeal **on or before** the date your coverage is set to change.

However, you may **NOT** keep coverage the same during your appeal **IF**:

- You only appeal a cut or end of coverage required by federal or state law. It may affect some or all enrollees **OR**
- Your citizenship or immigration status was not verified by the end of the 90-day reasonable opportunity period. This is described in HBEE § 54.05. This includes cases where:
    - You did not answer on time when we asked for proof **OR**
    - The information you sent does not prove that you have eligible immigration status **OR**
- The decision does not require advance notice under HBEE § 68.02. This includes cases where:
    - Facts prove the enrollee is dead,
    - The enrollee signed a written statement that they:
        - gave information forcing a cut or end of coverage and showed understanding of that result
    - The enrollee was admitted to an institution where they cannot get Medicaid services covered,
    - No one knows where the enrollee is and there is no forwarding address, or
    - The facts show that the enrollee is getting Medicaid in another state.

What happens after the appeal is decided?

Did you get health services you did not meet the rules for? Then we may ask you to pay us back. Also, winning or losing the appeal may change health care for others in your household.

What if my health care coverage stops and I win my appeal?

We will start your health care coverage again. It may go back to the date it ended.

Can I apply again?

Yes. Apply for Medicaid/Dr. Dynasaur **any time.** If you are denied, you may buy health insurance called a Qualified Health Plan. **Some people get help paying costs.**

You can only sign up for or change a Qualified Health Plan at certain times.

1. Call **1-855-899-9600** to see if you qualify to sign up or change your plan at any time. If you do, you can sign up for or change your plan **now**.
2. **You may get a Special Enrollment Period after some life events.** Life events include marriage, divorce, having or adopting a child. It can also be losing Medicaid/Dr. Dynasaur or other health care. You must sign up **within 60 days** of the life event. Call **1-855-899-9600** to find out more.
3. You can sign up or change your Qualified Health Plan **once a year**. You can do this from **November 1st to December 15th**. This is called Open Enrollment.